SECTION 3

# Who Names the Act and Who Owns the Story?

Two cases · two records each

When land changes hands, the conflict begins long before the first surveyor's peg or industrial excavator strikes the earth; it begins with language. Those in power wield bureaucratic terminology to sanitize dispossession. Communal heritage is branded “surplus,” ancestral forests are classified as “mine blocks,” and systemic exploitation is reframed under the banner of “development,” “national progress,” or “corporate stewardship.”

This section sets state and corporate archives directly against the counter-archives preserved by indigenous communities. Comparing the 1887 Dawes Act in the United States with ongoing coal extraction in India's Hasdeo Arand forest reveals identical institutional playbooks separated by over a century. Official records: statutes, clearance certificates, and glossy sustainability brochures, depict an orderly, legal redistribution of resources. In contrast, tribal petitions, forged consent controversies, and grassroots resistance tell a story of existential survival and broken treaties. By laying official claims alongside community realities, this exhibit asks: Who gets to decide what is legal, what is theft, and whose memory becomes history?

Audio guide · Section 3
Scan to listen

## 1

SECTION 3 · CASE 1 · ALLOTMENT OF NATIVE AMERICAN LAND · UNITED STATES, 1887–1934

## The Dawes Act

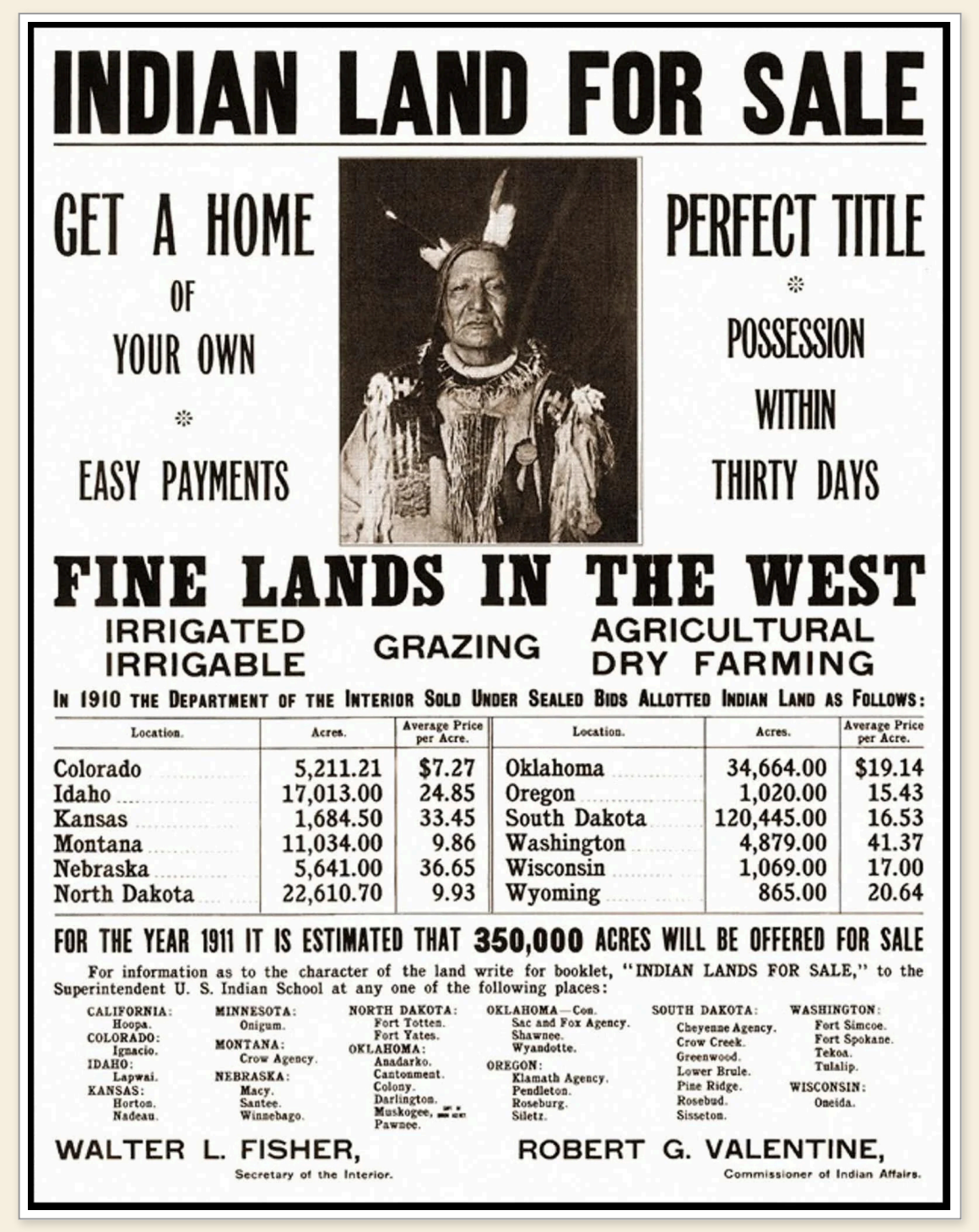
Before 1887, Native American tribes held and cared for their lands communally: no single person “owned” a plot; the entire tribe shared it. The U.S. government passed the Dawes General Allotment Act to end this system.

The government surveyed reservations and split the shared land into small, individual private plots given to Native families. Any leftover territory was labeled “surplus” and sold off to non-Native settlers, railroads, and corporations.

Under the guise of “civilizing” tribes through private ownership, this legal sleight of hand stripped Native Americans of roughly 90 million acres, two-thirds of their entire land base. The following exhibits trace how simple administrative labels transformed sacred communal homelands into commercial real estate, and how indigenous leaders fought to preserve their treaties.

**SAME ACT, TWO NAMES** “surplus” · allotment · “civilizing” · land for sale — vs — treaty land · communal homeland · two-thirds lost

### SIDE A · THE OFFICIAL RECORD



INDIAN LAND FOR SALE

GET A HOME OF YOUR OWN ❊ EASY PAYMENTS

PERFECT TITLE ❊ POSSESSION WITHIN THIRTY DAYS

FINE LANDS IN THE WEST

IRRIGATED IRRIGABLE · GRAZING · AGRICULTURAL DRY FARMING

IN 1910 THE DEPARTMENT OF THE INTERIOR SOLD UNDER SEALED BIDS ALLOTTED INDIAN LAND AS FOLLOWS:

| Location. | Acres. | Average Price per Acre. | Location. | Acres. | Average Price per Acre. |
|---|---|---|---|---|---|
| Colorado | 5,211.21 | $7.27 | Oklahoma | 34,664.00 | $19.14 |
| Idaho | 17,013.00 | 24.85 | Oregon | 1,020.00 | 15.43 |
| Kansas | 1,684.50 | 33.45 | South Dakota | 120,445.00 | 16.53 |
| Montana | 11,034.00 | 9.86 | Washington | 4,879.00 | 41.37 |
| Nebraska | 5,641.00 | 36.65 | Wisconsin | 1,069.00 | 17.00 |
| North Dakota | 22,610.70 | 9.93 | Wyoming | 865.00 | 20.64 |

FOR THE YEAR 1911 IT IS ESTIMATED THAT 350,000 ACRES WILL BE OFFERED FOR SALE

For information as to the character of the land write for booklet, “INDIAN LANDS FOR SALE,” to the Superintendent U. S. Indian School at any one of the following places:

CALIFORNIA: Hoopa.
COLORADO: Ignacio.
IDAHO: Lapwai.
KANSAS: Horton. Nadeau.
MINNESOTA: Onigum.
MONTANA: Crow Agency.
NEBRASKA: Macy. Santee. Winnebago.
NORTH DAKOTA: Fort Totten. Fort Yates.
OKLAHOMA: Anadarko. Cantonment. Colony. Darlington. Muskogee, Pawnee.
OKLAHOMA—Con. Sac and Fox Agency. Shawnee. Wyandotte.
OREGON: Klamath Agency. Pendleton. Roseburg. Siletz.
SOUTH DAKOTA: Cheyenne Agency. Crow Creek. Greenwood. Lower Brule. Pine Ridge. Rosebud. Sisseton.
WASHINGTON: Fort Simcoe. Fort Spokane. Tekoa. Tulalip.
WISCONSIN: Oneida.

WALTER L. FISHER,
Secretary of the Interior.

ROBERT G. VALENTINE,
Commissioner of Indian Affairs.

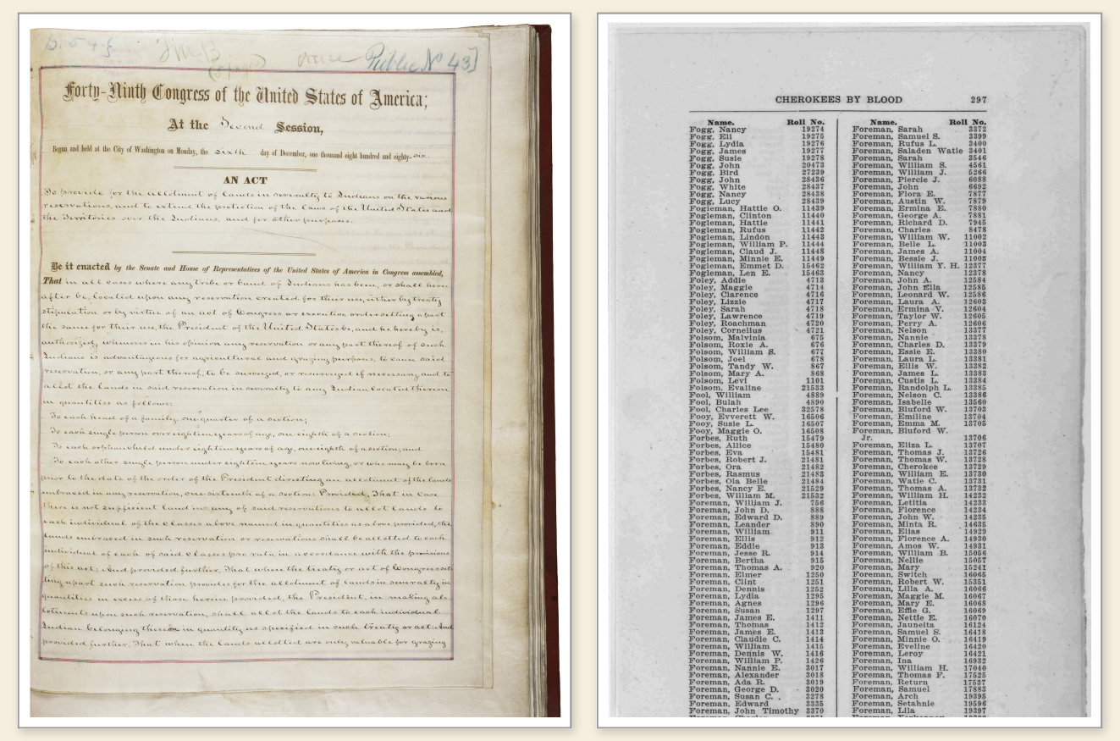
**“Indian Land for Sale”**

*1911 · US Department of the Interior · Poster · Reproduction*

A federal poster advertising allotted tribal land by sealed bid: ‘For the year 1911 it is estimated that 350,000 acres will be offered for sale.’ Signed by the Secretary of the Interior and the Commissioner of Indian Affairs.

**THE STATE NAMES IT: FOR SALE**

Original: Library of Congress. Public domain; image via Wikimedia Commons. The man pictured is a Yankton Sioux named Not Afraid of Pawnee.



Forty-Ninth Congress of the United States of America;
At the Second Session,
AN ACT

CHEROKEES BY BLOOD 297

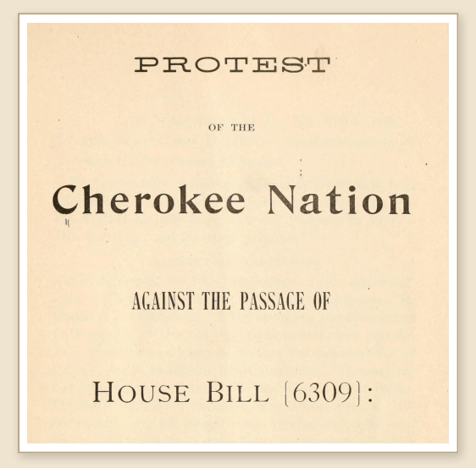
**The Dawes Act and the allotment rolls**

*1887 and 1907 · Reproductions; originals in the US National Archives*

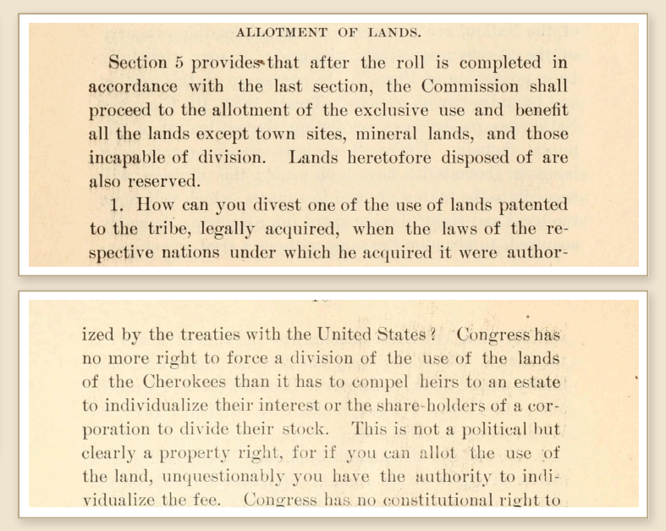
Left: the signed Act of 8 February 1887, ‘to provide for the allotment of lands in severalty to Indians’. Right: a page of the 1907 index to the final Dawes Rolls, ‘Cherokees by Blood’. A roll number decided who belonged, and who received land.

Act: NARA, Enrolled Acts and Resolutions of Congress (via DPLA / Wikimedia Commons). Index to the Final Rolls (1907), p. 297, via Internet Archive. Public domain.

### THE COMMUNITY'S RECORD · SIDE B



PROTEST
OF THE
Cherokee Nation
AGAINST THE PASSAGE OF
HOUSE BILL [6309]:



ALLOTMENT OF LANDS.

Section 5 provides that after the roll is completed in accordance with the last section, the Commission shall proceed to the allotment of the exclusive use and benefit all the lands except town sites, mineral lands, and those incapable of division. Lands heretofore disposed of are also reserved.

1. How can you divest one of the use of lands patented to the tribe, legally acquired, when the laws of the respective nations under which he acquired it were author-

ized by the treaties with the United States? Congress has no more right to force a division of the use of the lands of the Cherokees than it has to compel heirs to an estate to individualize their interest or the share-holders of a corporation to divide their stock. This is not a political but clearly a property right, for if you can allot the use of the land, unquestionably you have the authority to individualize the fee. Congress has no constitutional right to

**Protest of the Cherokee Nation to Congress**

*Washington, 5 March 1896 · Printed petition · Reproduction*

Cherokee delegates protest a bill to bring tribal land under federal courts and allotment: ‘Congress has no more right to force a division of the use of the lands of the Cherokees than it has to compel heirs to an estate to individualize their interest.’

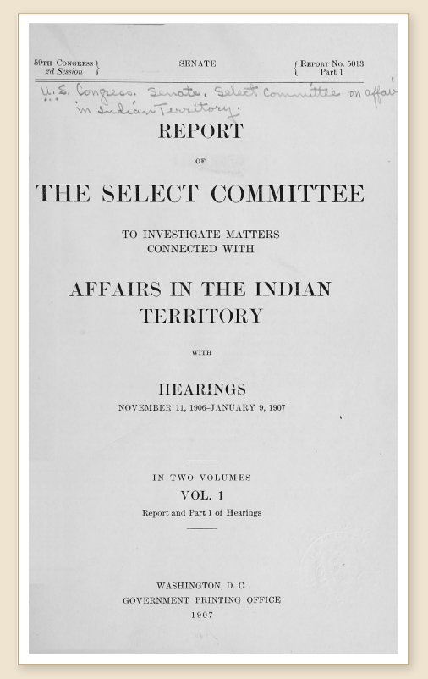
*The people name it*

Library of Congress copy, via Internet Archive (protestofcheroke00cher). Public domain.

IN HIS OWN WORDS

> *“I never consented to any agreement to divide up my land, and I don't want it divided up. I want the old treaty.”*

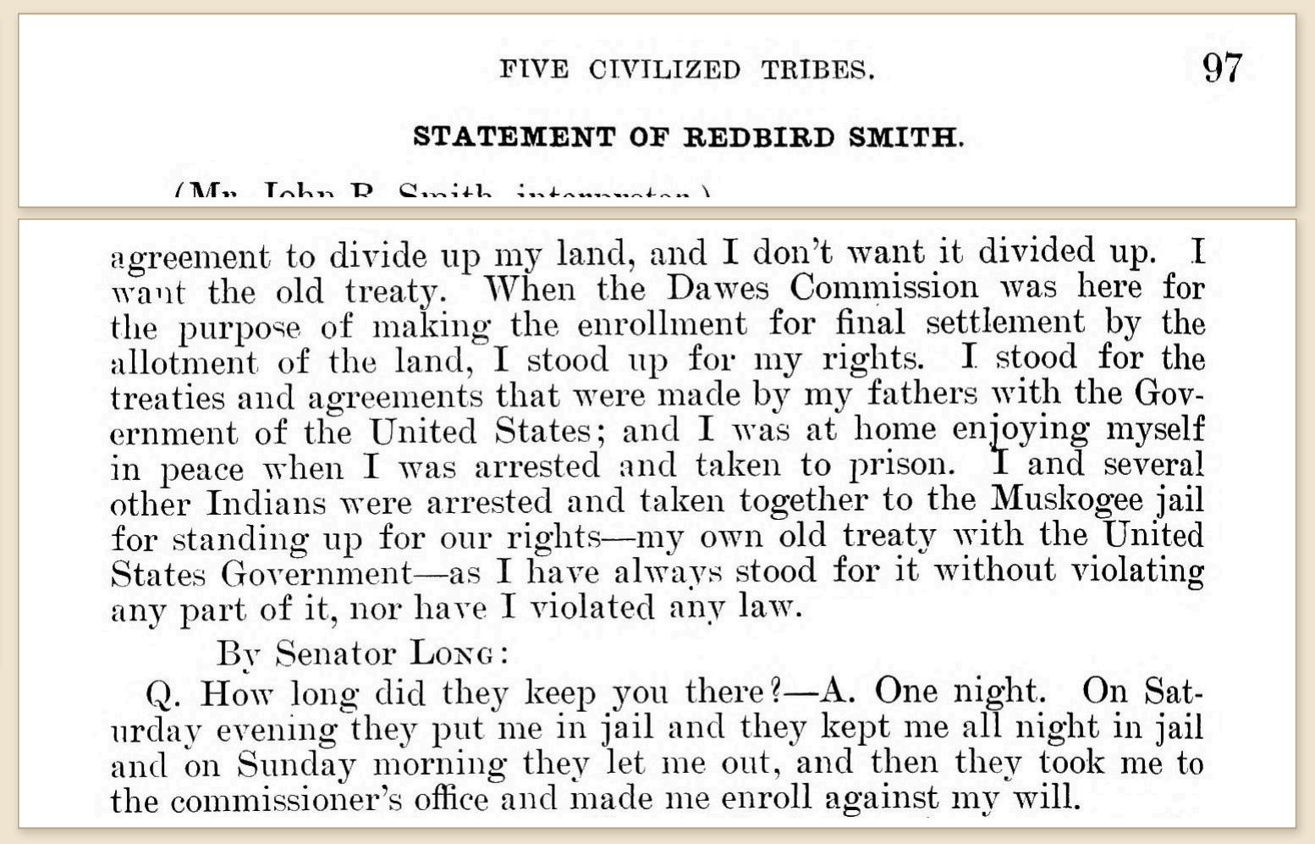
— Redbird Smith, Cherokee (Keetoowah) leader, testimony to a US Senate select committee, Muskogee, November 1906



59TH CONGRESS, 2d Session · SENATE · REPORT No. 5013, Part 1

U.S. Congress. Senate. Select Committee on affairs in Indian Territory.

REPORT
OF
THE SELECT COMMITTEE
TO INVESTIGATE MATTERS CONNECTED WITH
AFFAIRS IN THE INDIAN TERRITORY
WITH
HEARINGS
NOVEMBER 11, 1906–JANUARY 9, 1907
IN TWO VOLUMES
VOL. 1
Report and Part 1 of Hearings
WASHINGTON, D. C.
GOVERNMENT PRINTING OFFICE
1907



FIVE CIVILIZED TRIBES. 97

STATEMENT OF REDBIRD SMITH.

agreement to divide up my land, and I don't want it divided up. I want the old treaty. When the Dawes Commission was here for the purpose of making the enrollment for final settlement by the allotment of the land, I stood up for my rights. I stood for the treaties and agreements that were made by my fathers with the Government of the United States; and I was at home enjoying myself in peace when I was arrested and taken to prison. I and several other Indians were arrested and taken together to the Muskogee jail for standing up for our rights—my own old treaty with the United States Government—as I have always stood for it without violating any part of it, nor have I violated any law.

By Senator LONG:

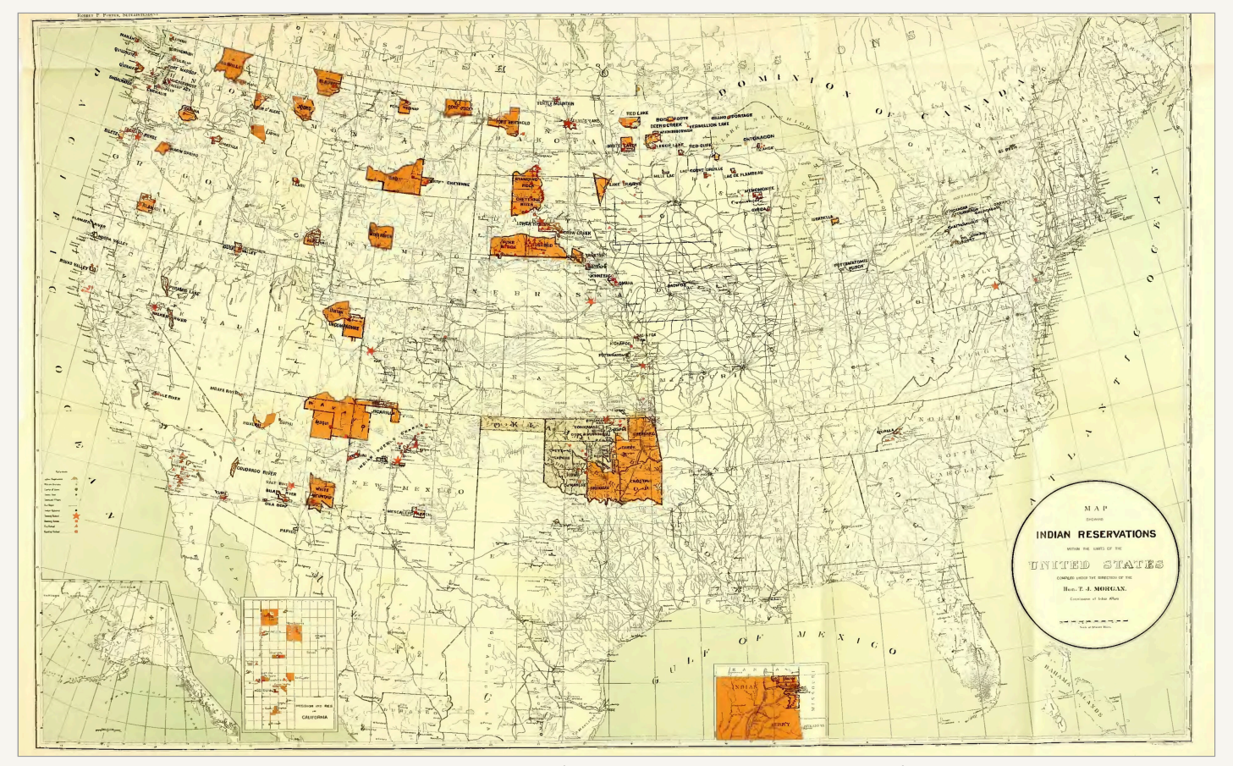
Q. How long did they keep you there?—A. One night. On Saturday evening they put me in jail and they kept me all night in jail and on Sunday morning they let me out, and then they took me to the commissioner's office and made me enroll against my will.

**Testimony of Redbird Smith**

*November 1906 to January 1907 · Senate Report 5013, vol. 1, pp. 97–98 · Reproduction*

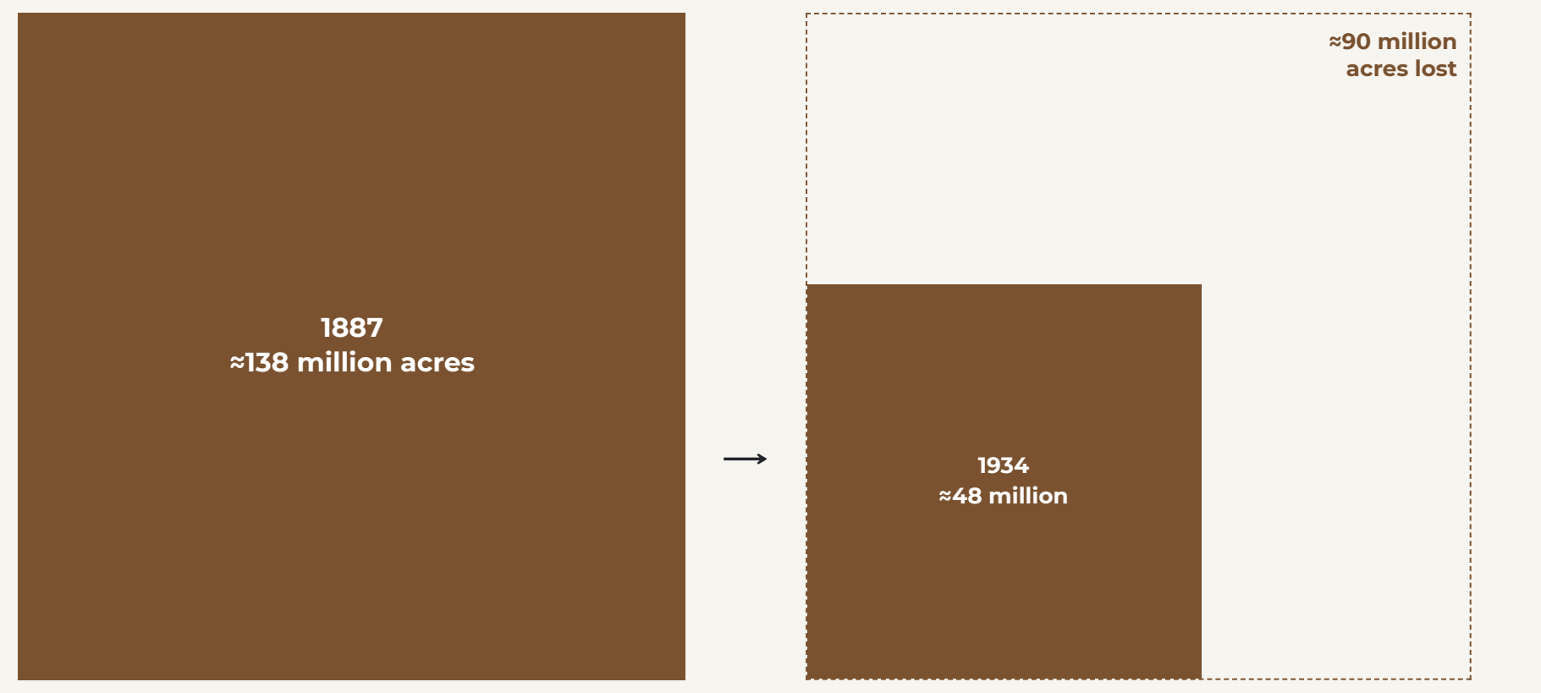
Arrested for refusing to enrol, he told the committee he was ‘made to enroll against my will’. The committee's answer, on the next page: take your allotment, or ‘you will soon find yourself without land altogether’.

### The shrinking land base, 1887–1934



Map showing Indian reservations within the limits of the United States, 1894 (Office of Indian Affairs, for the Eleventh Census). Public domain, via Internet Archive / Wikimedia Commons.

AREAS DRAWN TO SCALE



**The shrinking land base, 1887–1934 (map and diagram)**

*Map 1894 · Diagram made for this exhibition*

An official map of reservations seven years into allotment, beside two squares drawn to scale: Native land in 1887 and the third that remained in 1934, when allotment ended.

Listen & see the sources
Audio guide · Case 1 · The Dawes Act

## 2

SECTION 3 · CASE 2 · COAL MINING AND FOREST RIGHTS · CHHATTISGARH, INDIA, 2010 TO TODAY

## The Hasdeo Arand Forest

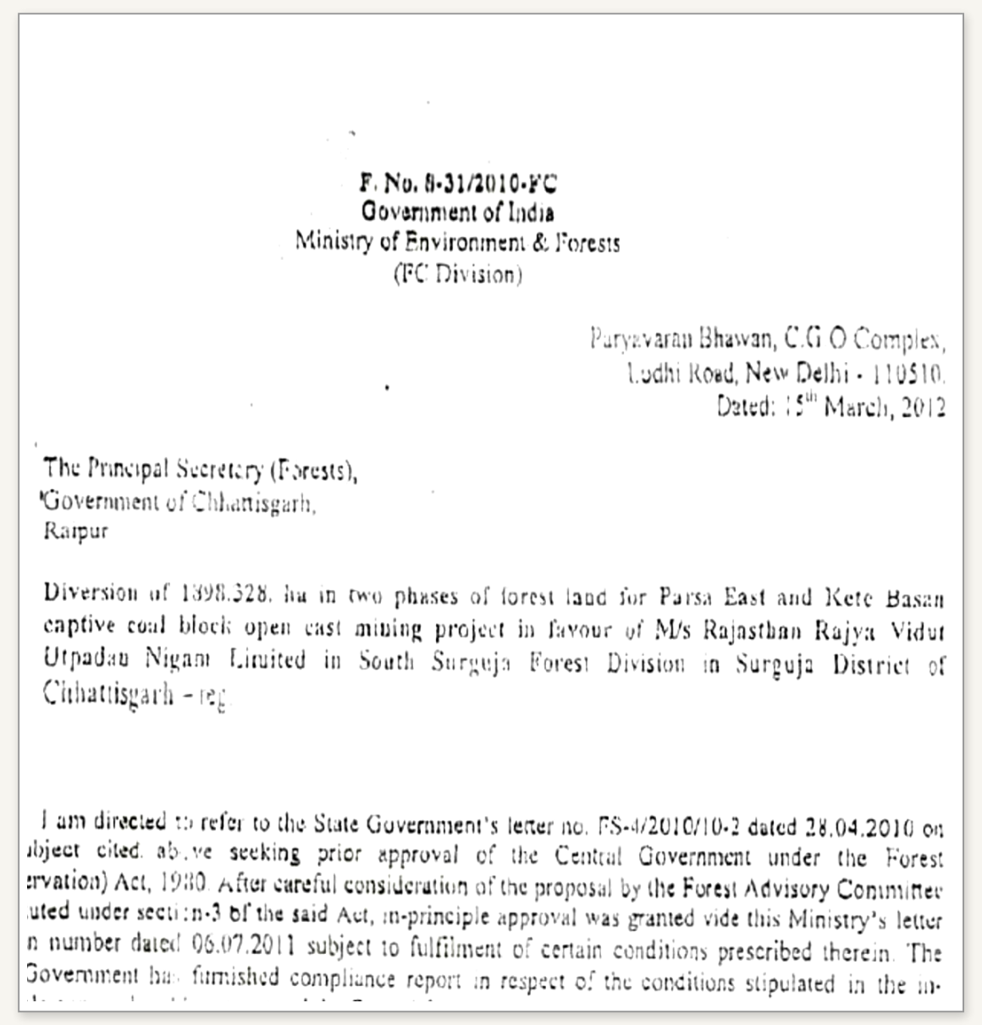
Spanning over 1650 square kilometres in Chhattisgarh, Hasdeo Arand is known as the “lungs of central India”, a biodiversity hotspot, elephant corridor, and home to indigenous Adivasi communities whose culture and survival rely on the forest. Under Indian law, village councils (Gram Sabhas) have the constitutional right to decide what happens to their ancestral land.

Beneath this ancient canopy, however, lie billions of tons of coal. Over the past decade, state agencies and corporate developers have systematically cleared vast tracts of the forest, designating them as open-cast coal blocks.

Official reports describe this extraction as essential national development and responsible stewardship. In response, local communities argue that clearances bypass their consent and destroy their watershed. The following exhibits document this unfolding clash: official environmental clearances and corporate brochures on one side, and village resolutions, forest blockades, and community defense on the other.

**SAME ACT, TWO NAMES** coal blocks · “development” · “stewardship” · clearance — vs — ancestral forest · consent refused · our watershed

### SIDE A · THE OFFICIAL RECORD



F. No. 8-31/2010-FC
Government of India
Ministry of Environment & Forests
(FC Division)

Paryavaran Bhawan, C.G.O Complex,
Lodhi Road, New Delhi - 110510.
Dated: 15th March, 2012

The Principal Secretary (Forests),
Government of Chhattisgarh,
Raipur

Diversion of 1898.328. ha in two phases of forest land for Parsa East and Kete Basan captive coal block open cast mining project in favour of M/s Rajasthan Rajya Vidut Utpadan Nigam Limited in South Surguja Forest Division in Surguja District of Chhattisgarh – reg.

I am directed to refer to the State Government's letter no. FS-4/2010/10-2 dated 28.04.2010 on subject cited above seeking prior approval of the Central Government under the Forest (Conservation) Act, 1980. After careful consideration of the proposal by the Forest Advisory Committee constituted under section-3 of the said Act, in-principle approval was granted vide this Ministry's letter of even number dated 06.07.2011 subject to fulfilment of certain conditions prescribed therein. The State Government has furnished compliance report in respect of the conditions stipulated in the in-

**Forest clearance, Parsa East and Kete Basan coal mine**

*15 March 2012 · Union Ministry of Environment and Forests, F. No. 8-31/2010-FC · Stage-II approval · Reproduction*

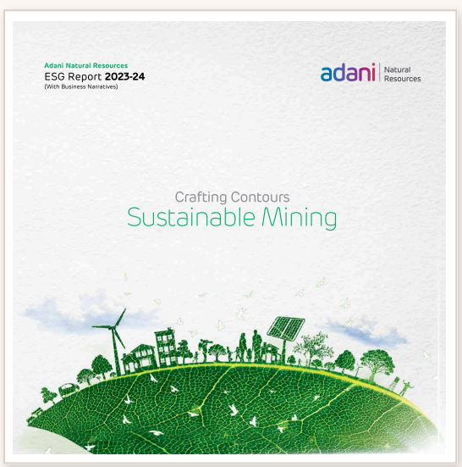
Final approval to divert 1,898.328 hectares of forest land for an open-cast coal mine, in two phases. In 2014 the National Green Tribunal set this clearance aside; the area had earlier been classed a ‘No Go’ area for mining. The Supreme Court stayed the Tribunal's order, and mining continued.

**The state names it: a coal block**

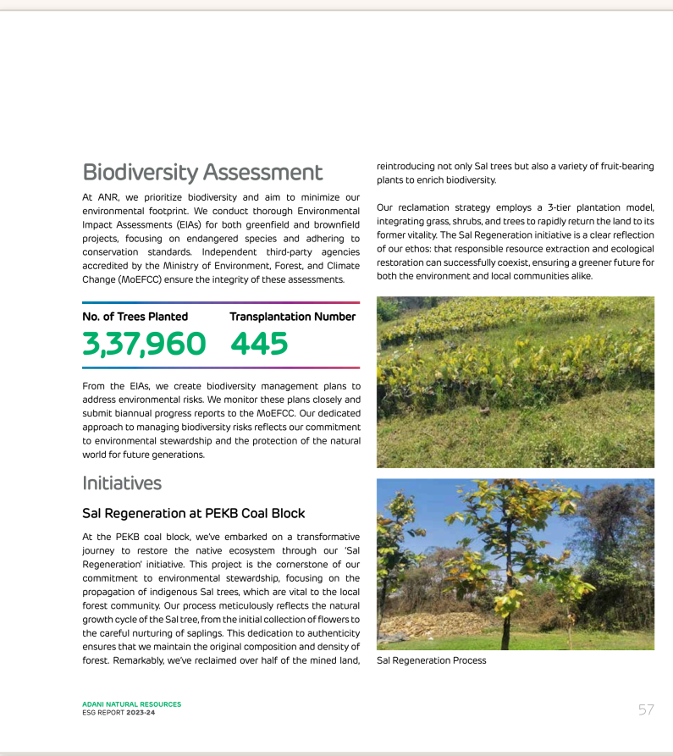
Copy: ‘True copy’ filed as Annexure R-2 by RRVUNL before the National Green Tribunal, O.A. No. 59 of 2024 (greentribunal.gov.in). Full letter on the desk.

Company report · 2023–24

### The official story, in a glossy brochure



Adani Natural Resources
ESG Report 2023-24
(With Business Narratives)
adani Natural Resources
Crafting Contours
Sustainable Mining



Biodiversity Assessment

At ANR, we prioritize biodiversity and aim to minimize our environmental footprint. We conduct thorough Environmental Impact Assessments (EIAs) for both greenfield and brownfield projects, focusing on endangered species and adhering to conservation standards. Independent third-party agencies accredited by the Ministry of Environment, Forest, and Climate Change (MoEFCC) ensure the integrity of these assessments.

| No. of Trees Planted | Transplantation Number |
|---|---|
| 3,37,960 | 445 |

From the EIAs, we create biodiversity management plans to address environmental risks. We monitor these plans closely and submit biannual progress reports to the MoEFCC. Our dedicated approach to managing biodiversity risks reflects our commitment to environmental stewardship and the protection of the natural world for future generations.

Initiatives

Sal Regeneration at PEKB Coal Block

At the PEKB coal block, we've embarked on a transformative journey to restore the native ecosystem through our ‘Sal Regeneration’ initiative. This project is the cornerstone of our commitment to environmental stewardship, focusing on the propagation of indigenous Sal trees, which are vital to the local forest community. Our process meticulously reflects the natural growth cycle of the Sal tree, from the initial collection of flowers to the careful nurturing of saplings. This dedication to authenticity ensures that we maintain the original composition and density of forest. Remarkably, we've reclaimed over half of the mined land, reintroducing not only Sal trees but also a variety of fruit-bearing plants to enrich biodiversity.

Our reclamation strategy employs a 3-tier plantation model, integrating grass, shrubs, and trees to rapidly return the land to its former vitality. The Sal Regeneration initiative is a clear reflection of our ethos: that responsible resource extraction and ecological restoration can successfully coexist, ensuring a greener future for both the environment and local communities alike.

Sal Regeneration Process

ADANI NATURAL RESOURCES
ESG REPORT 2023-24 57

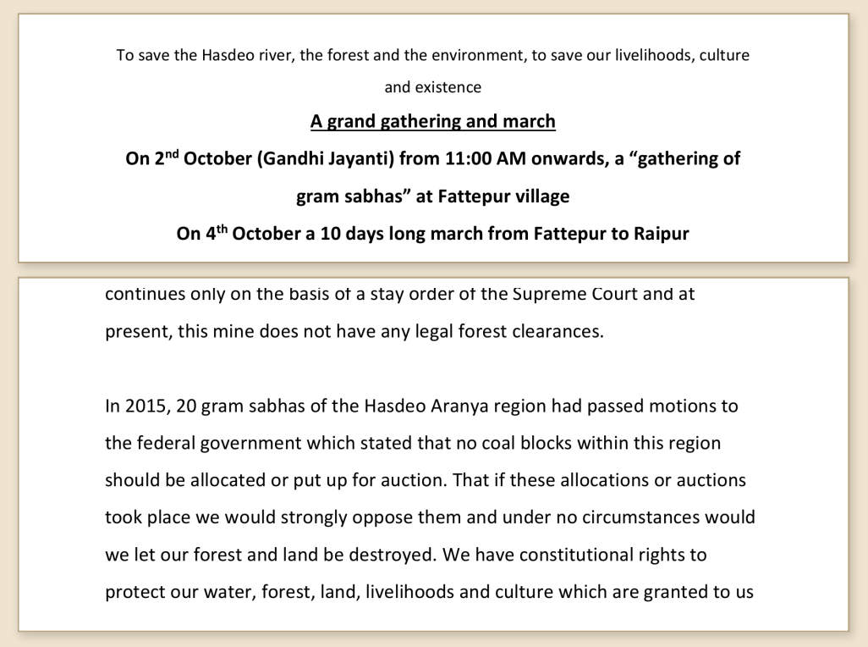
**Company report**

*2023–24 · Adani Natural Resources, ESG Report 2023–24, ‘Crafting Contours: Sustainable Mining’ · Cover and p. 57 · Extract*

The company that develops and operates the PEKB mine reports ‘3,37,960’ trees planted and a ‘Sal Regeneration’ initiative at the coal block, which it describes as ‘environmental stewardship’.

Source: adanienterprises.com (Adani-ESG-Report-202324). Extract reproduced for comment and review.

### THE COMMUNITY'S RECORD · SIDE B



To save the Hasdeo river, the forest and the environment, to save our livelihoods, culture and existence

A grand gathering and march

On 2nd October (Gandhi Jayanti) from 11:00 AM onwards, a “gathering of gram sabhas” at Fattepur village

On 4th October a 10 days long march from Fattepur to Raipur

continues only on the basis of a stay order of the Supreme Court and at present, this mine does not have any legal forest clearances.

In 2015, 20 gram sabhas of the Hasdeo Aranya region had passed motions to the federal government which stated that no coal blocks within this region should be allocated or put up for auction. That if these allocations or auctions took place we would strongly oppose them and under no circumstances would we let our forest and land be destroyed. We have constitutional rights to protect our water, forest, land, livelihoods and culture which are granted to us

**The gram sabhas' record**

*Hasdeo Aranya Bachao Sangharsh Samiti · Call for a gathering of gram sabhas and a march from Fattepur to Raipur · Statement · Reproduction*

The village movement's own account: ‘In 2015, 20 gram sabhas of the Hasdeo Aranya region had passed motions’ against any coal block in the area, and the consent later used for mining was obtained ‘by forging gram sabha resolutions’.

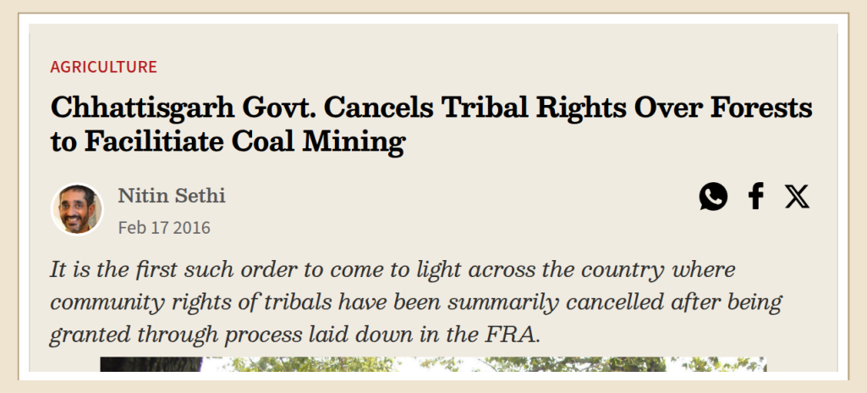
*The people name it*

English version published by Survival International. Full statement on the desk.

**2013** → Community forest title granted to Ghatbarra village (810 ha)

**2016** → Titles cancelled by the district, for coal mining — CANCELLED

**2025** High Court dismisses the village's challenge



AGRICULTURE

Chhattisgarh Govt. Cancels Tribal Rights Over Forests to Facilitate Coal Mining

Nitin Sethi
Feb 17 2016

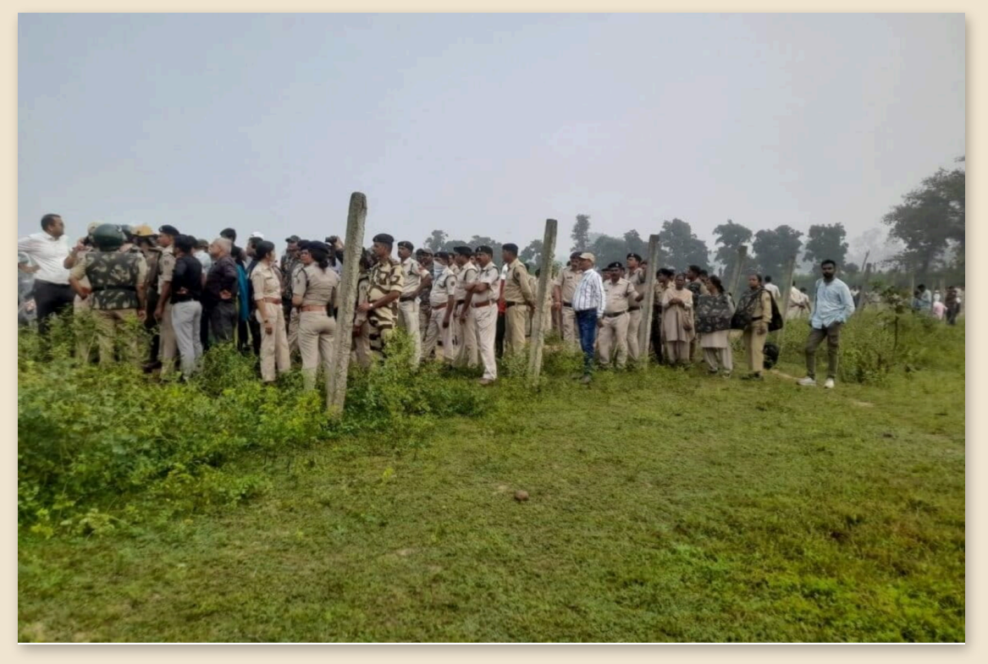
*It is the first such order to come to light across the country where community rights of tribals have been summarily cancelled after being granted through process laid down in the FRA.*

**Ghatbarra's forest rights: granted and cancelled**

*September 2013, January 2016, October 2025 · District forest rights committee; Chhattisgarh High Court · News report: The Wire, 17 Feb 2016*

Under the Forest Rights Act, Ghatbarra's gram sabha received community title over its forest in 2013. On 8 January 2016 the district cancelled it, because the coal block had been cleared in 2012. The Act has no provision for revoking such titles; the High Court still upheld the cancellation.

Full reports on the desk: The Wire (2016), Down To Earth (2025).



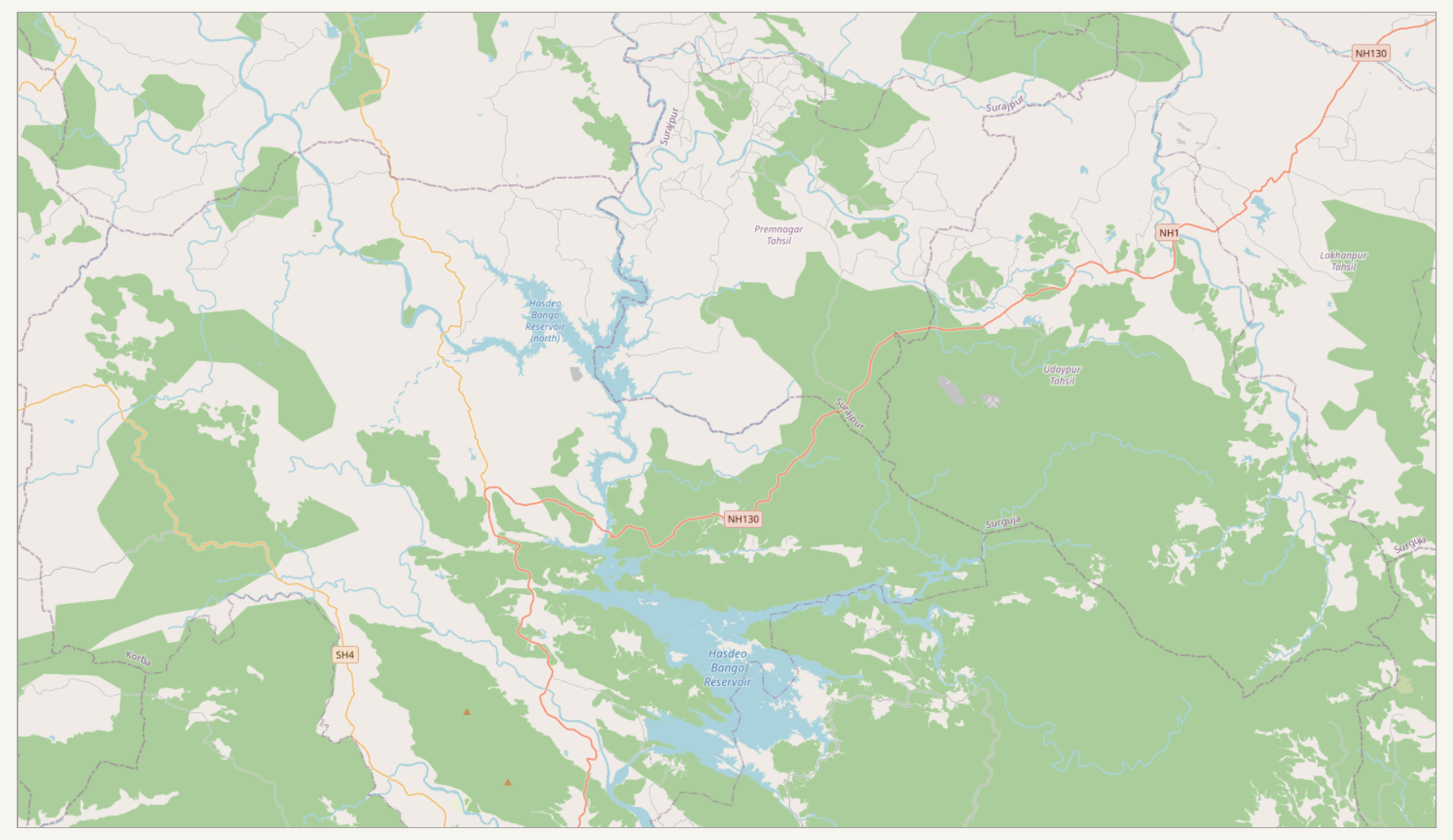
**Felling in the Parsa coal block**

*2024 · Photograph: Ramlal Kariyam · Published by Mongabay India, 28 November 2024*

Villagers and police face each other as trees are felled in the Parsa block, next to PEKB. Days later, Chhattisgarh's Scheduled Tribes Commission reported that the gram sabha consent behind the clearance had been forged.

Image © Ramlal Kariyam, from ‘Chhattisgarh tribal body says consent for mining in Hasdeo Arand was forged’, india.mongabay.com. Full article on the desk. Print permission to be confirmed with the photographer.

### Forest and coal blocks



**Forest cover and coal blocks (map)**

*Map data © OpenStreetMap contributors (ODbL) · Northern Chhattisgarh: Surguja, Surajpur and Korba districts*

Green is forest; the blue water is the Hasdeo Bango reservoir. The grey patches near Udaypur are the existing open-cast pits. The coal blocks and the villages of Ghatbarra, Salhi and Hariharpur are marked by hand.

Map: openstreetmap.org, tiles at zoom 11, retrieved November 2026.

Listen · Voices of the forest
+ audio guide · Case 2 · The Hasdeo Arand Forest

**Museum of Theft · Section 3** · Who Names the Act and Who Owns the Story? · full board

Wall 120 × 90 cm · printed on A0 at 1 : 1.2